APPENDIX A(I) TO SPECIAL CONDITIONS OF TENDER

Letter of Undertaking
(For unincorporated joint ventures)
(Clause SCT 5 of Special Conditions of Tender)

To : The Government of the Hong Kong Special Administrative Region ("The *Client*")
From : [ ]
Date : [ ]

Dear Sirs

Letter of Undertaking

Contract No.: HY/2022/14
Modification Works of Noise Barriers along Yuen Long Highway near Park Signature

We refer to the tender ("the tender") submitted to you by [ ] ("the tenderer"), for the above contract.

In consideration of your agreeing to consider the tender we hereby undertake not to make any changes to the percentage participation of each participant and the portion of the *works* for which each participant is responsible as submitted in the tender. If changes are necessary for the reasons stated in the above contract, we undertake to notify and to obtain consent from the *Client* in accordance with above contract before these changes are made.

This letter of undertaking shall be governed by and construed in accordance with the laws for the time being in force in the Hong Kong Special Administrative Region and we hereby submit to the non-exclusive jurisdiction of the courts of the Hong Kong Special Administrative Region.

IN WITNESS WHEREOF this Undertaking has been executed as a deed by the participants of the tenderer on the date first above written.

(a)	#SIGNED, SEALED and DELIVERED by [name of participant] being a participant of the [name of the unincorporated joint venture] in the presence of: ..... [Name] [Occupation] [Address]	*[Signature of the participant]*[1]	LS
(b)	#SIGNED, SEALED and DELIVERED by [name of partner] and [name of partner][3] being the partners of [name of participant] being a participant of the [name of the unincorporated joint venture] in the presence of: ..... [Name] [Occupation] [Address]	*[Signature of the individual partner]*[1] *[Signature of the individual partner]*[1]	LS LS
	Or		
(c)	#Executed and delivered as a deed and the COMMON SEAL of [name of participant] being a participant of the [name of the unincorporated joint venture] was affixed in the presence of [ ] its [director(s) or director and secretary or person(s) authorized to sign the contract by its board of directors][2] in the presence of a witness: ..... [Name] [Occupation] [Address]	*[Signature(s) of the directors etc]*[1]	Common Seal
	Or		

(d)	#Executed and delivered as a deed by [name of participant] being a participant of the [name of the unincorporated joint venture] acting through [ ] its sole director *or* [ ] and [ ] (its directors) *or* [ ] (its director) and [ ] (its company secretary)[2] in the presence of a witness: ..... [Name] [Occupation] [Address]	)))))))))))))))))))	*[Signature(s) of the directors etc]*[1]

Or

(e)	#SIGNED, SEALED and DELIVERED) by [name of participant] being a participant of the [name of the unincorporated joint venture] by [ ] his/her/its[2] attorney under the power of attorney dated [ ] in the presence of: ..... [Name] [Occupation] [Address]	)))))))))))))))	*[Signature of the attorney]*[1]

LS

Notes: (for preparation of but not inclusion in the engrossment of these Articles of Agreement)

(a) For use where the joint venture participant is a sole proprietor.
(b) For use where the joint venture participant is a partnership.
(c) or use where the joint venture participant is a company incorporated in Hong Kong and executes the deed with a Common Seal.
(d) For use where the joint venture participant is a company incorporated in Hong Kong and executes the deed without a Common Seal.
(e) For use where the joint venture participant executes the deed under a power of attorney.

\# Select the appropriate form or forms and REPEAT FOR EACH PARTICIPANT of the unincorporated joint venture.
[1] The italic parts are not part of the execution clause. They are for guidance or information only.
[2] Select the correct expression for use. If none are applicable, insert and appropriate expression.
[3] The deed shall be executed by all partners. Add more names if required.

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